

amendable. *Vide* 14 Hen. 4. 10, 11. (l) 27 Hen. 6. 6 b. 11 Hen. 6. 14. 34 Hen. 6. 26. 28 Hen. 6. 11. and upon this reason it has been often adjudged since this statute of (a) 8 Hen. 6. that false Latin † in an original writ shall not be amended, because it wants legal form, and is to be imputed to the ignorance of the clerk, 9 Hen. 7. 16 b. as (b) *hos breve*, for *hoc breve*: and the common law is curious in observing the form of the register, and therefore it is adjudged in 6 Edw. 3. 36 b. 37 a. that where a trespass done by divers is joint or several, at the will of the plaintiff, yet in an action against John, Guardian of the Hospital of B. and brother Rob. L. and brother Rich. F. inasmuch as this default of the clerk for want of form, that these brethren are not named Confrerers, as it ought to be by the form of the register, the writ shall abate against all, although the guardian be well named. But in trespass against two, misnomer of one of the defendants shall not abate the whole writ, but it shall stand against the other who is well named; for there Herle took the difference, when the writ abates by the plea of the one for want of form, although the others have pleaded to issue, the writ shall abate against all; † but although one may abate the writ for matter in fact, as by reason of the misprision of his name, nevertheless the writ shall stand against the others. *Vide* 2 H. 7. 16. 11 H. 7. 5. 6. 21 H. 7. 31. 7 E. 4. 10. 5 E. 4. 2. 11 Ass. 15. 12 Ass. p. 14. 27 Ass. p. 45. 9 Hen. 6. 36. 12 E. 3. Brief 670. 12 E. 3. Brief 481. 27 H. 8. 26. 5 Plow. Com. in Assise of Fresh Force.

But as to the second manner of misprision in negligent writing of a word which is not a Latin word, that is amendable, as (c) *imaginavit*, for *imaginatus est*, it shall be amended, as it is adjudged in 11 Hen. 6. 3. 17. So was it adjudged in 3 Edw. 6. as Bendloes, Serjeant, reports, that where in a writ of *aiel* the writ was *axe*, (d) for *aria*, it was amended (D).

[160 a] As to the third manner of misprision in negligent omission or addition of a thing which it appears he himself ought to have added, or omitted of course; as by the omission of *Dei Gratia* in the King's stile, it shall be amended. 22 Hen. 6. 8. So 3 Ed. 6. as Bendloes, Serjeant, reports, these words in a *partitione faciend'* (e) (*ostensur quare non feceret*) were left out, and it was amended. *Vide* 35 H. 6. 6. 10 a. 2 Hen. 7. 11 b. 9 Hen. 7. 19. for addition of that which is apparent ought to be omitted. But the (f) omission or addition of any thing which alters the form of the writ is not amendable, as the addition or omission of (g) *delinet*, as appears in 11 H. 6. 14 a. b. or the addition of *debet*, as appears in 22 E. 4. 21 b. 22 a.

As to the fourth manner of misprision, *sc.* of the record or specialty, &c. *Vide* 21 H. 6. 8. 22 H. 6. 43. 37 H. 6. 34. 19 H. 6. Amendment 47. 8 E. 4. 4.

As to the fifth manner of misprision, in negligence of a clerk or officer, not in writing, &c. but in negligent keeping of the records, or in voluntary defacing of them, whereby the record becomes imperfect or erroneous, in Trin. 24 Eliz. the case was that Henry Fitz-Allen, late Earl of (a) Arundel, in the reign of Queen Mary suffered a common recovery of divers manors, and of lands and tenements in the county of Sussex; and the original writ upon the recovery was had, being greater and broader than the other writs of the same file, by the negligence of the officer by continual handling of it, a great part of this writ, which was more spacious than the rest, was

(l) Fitz. Amend. 35. Br. Amend. 6. Br. Brief. 519. *Postea* 161 b.

(a) 8 H. 6. c. 12.

† 1 Lev. 2, &c. *ib.*

(b) Br. Faux Latin 78. 2 Vent. 173. 2 Sand. 39. Hob. 66.

† Com. Dig. Abate. N. 6 Co. 64 b.

(c) 2 Vent. 173. Fitz. Amend. 24. Br. Amendment 81.

(d) 5 Co. 45 b. Moor 5. 1 And. 24. N. Benl. 33. pl. 53. 1 Lev. 2. seems *contra*, per Twisden and Windham, J.

(D) *Vid.* stat. 4 Geo. 2. cap. 26. that proceedings in Courts of Justice shall be in the English tongue.

(e) 5 Co. 45 b. Moor 5. 1 And. 24. Dal. 5. pl. 9. N. Benl. 33. pl. 53.

(f) Cr. El. 119.

(g) 5 Co. 35 b.

(a) 1 And. 79, 80.

obliterate, and worn out, so that but one letter of many of the names of divers of the said manors could be perceived, but the names of the manors were truly recited as well in the count (which always briefly recites the writ) as in the *habere facias seisinam*: and whether this original was amendable, or not, was a great question between P. Howard Earl of Arundel, cousin and heir of the said Henry Earl of Arundel, and the Lord Lumley, to whom the said Henry Earl of Arundel had conveyed divers of the said manors, &c. And to resolve this question, Sir Christopher Wray, Chief Justice of England, Sir Edward Anderson, Chief Justice of the Common Pleas, Sir Roger Manwood, Chief Baron of the Exchequer, and all the justices of England, assembled themselves together. And it was resolved by them all *una voce*, that the original writ should be amended according to the other parts of the record, *scil.* the count, and the *habere facias seisinam*; and that this misprision and negligence of the clerk in keeping of the original writ should be amended by this statute of 8 Hen. 6. for here doth not appear any want of knowledge in the clerk, but misprision and negligence in keeping of the writ, which is a misprision within the letter [160 b] and meaning of the Act; and *eo potius* in this case, because it was in a common recovery suffered by assent of the parties for assurance of lands. And although it is enacted, that if any record, or parcel thereof, writ, return, pannel, process, or warrant of attorney in the King's Courts, &c. are voluntarily (*b*) stolen, carried away, withdrawn, or avoided by any clerk, that it shall be felony; that doth not prove, that if the original writ or other part of the record be voluntarily stolen, &c. that it cannot be supplied and amended by the other parts of the record: for it was resolved that in both cases, as well where the record becomes imperfect and erroneous by voluntary offence of the clerk, as by his careless negligence, that it should be amended, for all is within this general word, misprision of the clerk. But if such part of the record which is so stolen, &c. or which appears not, cannot be supplied by the other parts of the record, nor by any exemplification made of the record, then it cannot be amended; and *vide* the first clause of this Act of 8 Hen. 6. gives remedy amongst others, where any subtraction or diminution is of any record, process, warrant of attorney, original writ, &c. And according to this resolution a fine was amended of Mich. 8 Jac. as appears by the order and rule of Court following.

Crompton.

Mich. 8 Jacobi Regis.

Lincoln, ss. *In fine levat' in Cur' hic in Octab' Sancti Hilarii, anno regni dom' Eliz. nuper Regine Anglie 16 inter Robertum Tyrwhite militem et al' quer' et Edmund Dighton, armiger' et al' defor' de maneriis de Magna Sturton, Parva Sturton, et al' in com' preed' ; quia constat Cur' super visum pedis ejusdem finis, quod per humiditatem aeris, et pluviam super illam descenden' idem pes fines adeo oblitteratus est, ut multe linee ejusdem totalit' deletæ ita ut legi non possunt: tamen per breve de conventionione, et dedimus potestatem de cognitione inde capiend' ac per concordiam et notam ejusdem finis satis liquet et apparet que fuerunt verba in eodem pede prius script'. Ideo ordinat' est, quod preed' pes finis cum proclam' super inde indorsat' per chirographar' de novo rescribatur, ita quod concord' cum preed' brevi de convent', dedimus potestatem, concordia, et nota ejusd' finis, et cum aliis proclam' indorsat' super pedes finium ejusd' term' et quod preed' pes finis sic oblitterat' a filac' inde abstrahatur, et preed' pes finis sic de novo rescript' in loco ejusdem affiletur.*

And this briefly shall suffice for amendment of the misprision of the clerk in an original writ (E). And as to the case at Bar, the [161 a] rule of the Court was in these words: Crompton. *Ordinatum est per Cur' hic super auditu consilii utriusque partis et examinatione Clerici Cursistar' London et attornat' quer' super sacramenta sua in Cur' hic, quod hæc additio (generoso) nomini defend' in priori parte brevis original' de debito 100 li inde return' et affilat' in Banco hic mense Michaelis anno regni Regis nunc septimo, et omnes*

(b) Palm. 199. 11 Co. 34 b. 3 Inst. 70, 71, 72, 73. Standf. Pl. Cor. 36 b. Dalt. Just. 386. 6 Mod. 280.

(E) "The true rule is that original writs may be amended by 8 H. 6. c. 12. where it is only the misprision of the clerk: but a mistake occasioned by the nescience or ignorance of the clerk is not amendable by that statute." Per Willes, C.J. *Wynne v. Thomas*, Willes 568.

*misprisiones in recordo et process' ejusd' placiti proinde subsequen' emendentur, et fiat (militi) secundum instructiones in script' prius deliberat' præf' Cursistar', viz. præd' breve originale per præfat' Cursistar' et recordum, et process' præd' per Philizar' hujus Curie.*

The next word in the Act of (a) 8 H. 6. is (record) and the first part of the record is the count; and briefly a count which wants substance shall not be amended in another term (F) as appears (b) 7 H. 6. 26 a. (c) 35 H. 6. 37 b. (d) 38 H. 6. 1 a. (e) 7 Ed. 4. 26 b. 9 Ed. 4. 5. (f) 33 H. 6. 2 a. *Vide* 38 H. 6. 2. 33. and 30 H. 8. Br. Amendment 80. for the King's case.

But it is enacted by the statute of (a) 36 E. cap. 15. that by the ancient forms and terms of pleadings no man be prejudiced, so that the matter of the action be fully shewed in the declaration and in the writ. *Vide Eveleigh's case*, 13 Eliz. Dyer 299. by the statute of 36 E. 3. c. 15. the declaration having substance shall (b) not abate for form. *Vide* 28 H. 6. 8 a. In a writ brought by John Gargrave against Thomas Beamond on a bond, and the bond was, *Noverint, &c. me Thomas Beamond teneri, &c.* Joseph Gargrave (without addition) and the writ was, *præcipe, &c. quod reddat Joseph Gargrave (c) armig' with addition*; and it was moved, that it might be amended by the stat. for it is the misprision of the clerk: but it was adjudged, that the writ should abate for this variance and should not be amended, as it should if it was on the defendant's part; for where the surplusage is on the plaintiff's part, as well in the writ, as in the count, a man cannot mend his own count. And this judgment was after the said stat. of (d) 8 H. 6. which proves that the said first clause of this very Act, which speaks of addition or diminution, &c. extends only to corruption, and misdemeanor in addition or diminution, and in vitiating of a record, and not where it is done in *rei veritate*, although it be by misprision. *Vide* 4 E. 4. 14 b. (e) A space in the declaration for the place where the obligation was made was not amendable in another term. And this which has been said of the count shall suffice. Other parts of the record are, plea in bar, replication, &c. and regularly matter of substance in them, and especially matters of fact shall not be amended in another term, as omission of averment, *et hoc parat' est verificare, &c.* † for in some cases, as in avowry, &c. it is not of necessity, but colour which is of course, and in which there is a misprision of the clerk, shall be amended.

[161 b] And the record in another term may be amended by the (f) paper book of the office, for it was the misprision of the clerk in the entering of it, and no fault in the party or his counsel, (g) 27 H. 6. 6. b. (h) 10 H. 7. 23 a. b. 25. a. 11 H. 7. 2 a. b.

(a) 8 H. 6. c. 12.

(F) It is now settled that whilst the pleadings are in paper, and before they are entered on record, the Court or a Judge will amend the declaration, plea, replication, &c. in form or in substance, on proper and equitable terms. *Tidd's Practice*, Vol. II. 753, 8th ed.

(b) *Fitz. Count* 12. Br. Amendment 30.

(c) Br. Amendment 15. Br. Count 22. Br. *Faits* 5. *Fitz. Forger de Faux Faits* 14.

(d) Br. Count 504.

(e) Br. Count 92.

(f) Br. Amendment 8.

(a) 10 Co. 132 b. Cr. Eliz. 85. 2 Bulstr. 214. Dyer 299. pl. 32. Co. Lit. 304 b.

(b) Plowd. 83 b. 2 Bulstr. 214. Dyer 299. pl. 32.

(c) *Fitz. Amendment* 37. Br. Amendment 93. *Fitz. Brief* 109. Br. Brief 28. Br. *Nugation*, &c. 23.

(d) 8 H. 6. cap. 12.

(e) *Fitz. Amendment* 49. Br. Amendment 68. Br. Brief 478. Br. Count. 64. 1 Roll. 208. 20 H. 6. 18 a. Br. Amend. 5. *Fitz. Amendment* 28.

† *Vide* stat. 4. & 5 Annæ, c. 16.

(f) Cr. Eliz. 258. Salk. 50, 51.

(g) *Fitz. Amendment* 35. Br. Amend. 6. Br. Brief 519. *Antea* 159 b.

(h) Br. Amendment 112.

(i) 20 H. 6. 18 a. (k) 27 H. 8. 1 b. the misprision of a certificate of a record on a writ of error shall be amended according to the record, 22 E. 4. 46. and 21 H. 7. 41. but that is by the express provision of the said statute of 8 H. 6. for it was the act of the Judge, which was not amendable by the said branch of the Act, as shall be said after.

A thing apparent to be a misprision, which the (l) clerk of course ought to have added, without any instruction of the party, although it be in a material point, shall be amended in another term. As if in debt brought, the defendant pleads *nil debet*, *et de hoc ponit se super patriam*, *et præd' defendens similiter*; where it (m) ought to be, *et præd' querens similiter*, it shall be amended by this Act of 8 H. 6. 11 H. 7. 2. acc. which case was not amended by this Act of 14 E. 3. as appears by the book in 46 E. 3. before; for the first Act speaks only of process, and this Act speaks of the record and plea. So in an action brought against Sir Roger Townsend, he pleaded in bar, and concluded, which matter *præd' Johan'* is ready to aver, where it should be *Rogerus*; and it was amended by the advice of all the justices; as it is reported in 11 H. 7. 25 a.

And as to the writ of *nisi prius*, it is to be known, that the misprision of the clerk of the Treasury, who writes it, is also therein amendable by this statute, and to be made according to the record, but with this caution, *scil.* that the record of *nisi prius* have sufficient matter in it, either expressed or implied, to give authority to the Justices of Nisi Prius to try the issue; for they cannot try any issue by force of the statutes made thereof, without authority given to them by writ of *nisi prius* and so it is adjudged in 11 H. 6. 11. a. b. in debt against J. S. husbandman; issue was taken, if he was husbandman *die impetrati' brevis*; and the writ of *nisi prius* was, whether he was husbandman (omitting these words, *die (a) impetrationis brevis*) which was the material point of the issue; but the roll was well, and the jury passed for the plaintiff, and found that the defendant was husbandman *die impetrationis brevis* and the writ of *nisi prius* could not be amended by the statute of 8 H. 6. because the Justices of Nisi Prius have no power to try the issue contained in the record, because *die impetr' brevis* was omitted in the *nisi prius*; and if the Justices of Nisi Prius had taken the verdict according to the issue in writ of *nisi prius* that he was husbandman generally, without saying *die impetrat' brevis*, it had been contrary to the roll; wherefore it was awarded, that the plaintiff should sue a *venire facias de novo*. But 9 Eliz. Dyer 260, 261, in *partitione fac'* by Wotton against (b) Anthony Cook and Temple, who appeared, and Temple [162 a] confessed the partition, and judgment given accordingly, *sed cesset executio*. Cook conveyed title in severalty, and traversed the supposal of the writ and count by *absque hoc*, the plaintiff maintained the writ and count, *et hoc petit quod inquiratur per patriam*, *et præd' Anthonius similiter*, *ideo 12, &c.* And in the record of *nisi prius* the issue was well recited, and no part of it omitted: but where the plaintiff concluded, *et hoc petit quod inquiratur per patriam*, by the negligence of the clerk of the Treasury, the writ of *nisi prius* was, *et præd' similiter*, omitting this word *Anthonius* in the close and joining of the issue. And farther, the jury entered into the record of *nisi prius* was, *inter* Wotton plaintiff, and Cook and Temple defendants, where Temple had made a confession of the partition before, and so a stranger to the issue: but the record which warranted it was well enough; and notwithstanding these faults and misprisions, the issue was tried at Nisi Prius, and afterwards by the rule of the Court of Common Pleas, the verdict was well taken, and the said misprisions were amended; for sufficient authority was given by the writ of *nisi prius* (which is but the transcript of the record) to try the issue, and to take the verdict. If a man declare of damages of 100l. and the record of *nisi prius* is 100s. and the jury give damages 20l. the (a) *nisi prius* shall be amended and made 100l. according to the roll:

(i) Br. Amendment 5. Fitz. Amend. 28.

(k) Br. Amend. 1.

(l) Cr. Car. 38. Cr. Jac. 64, 65.

(m) Cr. Jac. 587. 1 Roll. 300. 3 Salk. 31. Skinner 591.

(a) Fitz. Amendment 25. Br. Amend. 82. Salk. 48, 49. 1 Lord Raym. 94.

(b) 1 Roll. 202. Dyer 260, 261. pl. 24, 25. Cr. Car. 54. 278. 2 Brownl. 47. 3 Bulstr. 161. Yelv. 109. Cr. Eliz. 776. Palm. 524. Moor 681.

(a) *Anlea* fol. 157 a. Dyer 251. pl. 25. Br. Amendment 27. 1 Roll. 202. Fitz. Amend. 8. Moor 681.

for it is the misprision of the clerk, which doth not change the issue. *Vide* 11 H. 7. 1 b. 10 H. 7. 25 a. b. and so it was adjudged in 2 H. 4. 6. a. *Vide* 39 E. 3. Br. 105. (b) 7 E. 4. 15. *Vide* after, when misprision of the clerk in the entry of the verdict of judgment, which are other parts of the record, shall be amended. As to (word) that has been explained before.

As to this word (plea) that has been explained before in the word (record) which includes it.

As to (c) (warrant of attorney) † see 23 Hen. 8. Amendment 85. 24 Hen. 8. Amendment 47. 2 Ma. Dyer (d) 105. 2 Eliz. Dyer (e) 180. 5 Eliz. Dyer (f) 225. 6 Eliz. Dyer (g) 231. But when no warrant of attorney is put in, it is not remedied by this Act. As to panel and return, in what cases misprisings of them shall be amended within this stat. *vide* (h) 2 E. 4. 7 a. b. 9 E. 4. 14 a. 33 H. 6. 42. after the sheriff is removed or dead, &c. 37 H. 6. 12. 3 H. 7. 14. 12 H. 7. 19. But no return is not helped by this statute.

And it is to be observed, that (i) those things which are amendable before the writ of error brought are amendable after the writ brought: and if the (k) Inferior Court doth not amend them, the Superior Court may amend them.

It is necessary now to shew two things; 1. What things are not amendable by this Act of H. 6. 2. How many of them, not remedied by this Act, are remedied by other statutes. As to the first, this Act of 8 H. 6. c. 12. nor the Act of 8 H. 6. c. 15. do not extend to 14 misprisings. They do not extend to want of an original (g), but to misprision of the clerks, as [162 b] is aforesaid in an original. 2. They do not extend to misprision of (l) form in the original, either false Latin, or variance from the register. 3. They do not extend to a material variance betwixt the original and the count. 4. They do not extend to insufficient trial, *scil.* when the venue is mistaken: but misprision of the clerk in the entry of the (m) verdict shall be amended in another term, according to the note found by the jurors: so was it adjudged in *Rawlin's case* in the Fourth Part of my Reports 29 & 30 Eliz. 52 b. 5. They do not extend to a jury returned by the coroners, where the sheriff ought to return it, or *e contra*. *Vide* *Bainham's case*, in the Fifth Part of my Reports, fol. 36 b. *Vide* 21 & 22 Eliz. Dyer. 367. 6. They do not extend to a trial where no return is endorsed on the *venire facias*, (a) *Rowland's case* in the Fifth Part of my Reports, Mich. 35 & 36 El. fol. 41 b. 7. They do not extend to a trial, where one appears who was not returned on the *venire facias*. *The Countess of Ruland's case*, in the Fifth Part of my Reports, folio 42. 8. They do not extend to a return of the *venire facias* without the † name of the sheriff. 9. They do not extend to a jeofail, want of colour, insufficient pleading, or to any other default of the party, or of his counsel. 27 H. 6. 10. 18 E. 4. 3. 20 E. 4. 6. 11 H. 6. 28.

(b) *Antea* 157 a. Fitz. Amend. 51. Br. Amend. 71.

(c) Palm. 231. B. N. C. 43.

† 23 Hen. 8. Br. Amen. 85. *in medio*. 24 H. 8. Br. Amendment 47. *in fine*.

(d) Dyer 105. pl. 16. 1 Roll. 289. 1 Roll. Rep. 16.

(e) Dyer 188. pl. 48. 1 Roll. 290. *Vide* 92 H. 8. c. 30. and 28 Eliz. c. 14.

(f) Dyer 225. pl. 34. 1 Roll. 290.

(g) Dyer 230, 231, pl. 58. 1 Roll. 290. 1 Roll. Rep. 305.

(h) Fitz. Amendment 48. Br. Amendm. 67.

(i) 2 Roll. Rep. 253. Willes 7. Tidd's Practice, 770. 8th ed. 2 Chitt. Rep. 22.

(k) 2 Roll. Rep. 253.

(g) In *Carr v. Shaw*, 7 T. R. 299. Lord Kenyon C.J. said, "that there was no doubt but even an original might be amended on an application to the Master of the Rolls, though it could not be amended in the Court of K. B. That, when he was Master of the Rolls, he had known several instances of the kind; and that before he was Master of the Rolls, an original had been supplied, even in the case of a penal action brought by Sir R. Bampfylde on the game laws."

(l) 5 Co. 45 a.

(m) Palm. 260. Salk. 53.

(a) 5 Co. 41 b. 42 a.

† Palm. 151, 152.

For the statute extends only to misprision of clerks. 10. For the same reason they do not extend to any error or misprision of the Judges in any term past. 2 R. 3. 11. 9 E. 4. 3. *Vide* 30 H. 6. 1. But misprision of the clerk in the entry of the judgment of a thing which is apparent, (b) and not of necessity, is amendable, as the misprision of the summing of the arrearages before and pending the writ of annuity, shall be amended, 35 H. 8. Dyer 55. 11. They do not extend to that, where the justice of Nisi Prius takes the verdict *post ipsum diem* in bank, 1 Ma. Dyer 97. and 33 H. 6. 25. 12. They do not extend to want of warrant of attorney. 13. This statute nor the statute of 32 H. 8. c. 30. do not extend to help any of the imperfections or misprisions, where a verdict is given on an issue joined betwixt the demandant and the vouchee, (c) or the tenant and the vouchee, as it was resolved Mich. 1 & 2 Phil. & Mar. Bendloe. But if any error in law be in the judgment, as *ideo in misericordia*, for *pro capiatur*, or *e contra*, or the like; † that is not amendable in another term, as it has been oftentimes adjudged (H). 14. Nor do they extend to an appeal, nor to pleas of the Crown, nor to any proceeding upon them, for they are excepted, nor to the amendment of any exigent, to make any one to be outlawed, &c. 20 H. 6. 18. 7 E. 4. 16. 22 E. 4. 7. 38 H. 6. 3. 21 H. 7. 34. *Vide* 7 H. 4. 27. Now as to misprisions not remedied, neither by the stat. of 32 H. 8. c. 30. nor by the stat. of 18 El. c. 14. 1. All the said misprisions not remedied by the said stat. of 8 H. 6. remain yet not remedied by any law or statute where no verdict is given upon issue joined: as if judgment [163 a] be given upon confession, demurrer, *nihil dicit*, *non sum informatus*, or otherwise than by verdict of twelve men upon issue joined. 2. When a verdict upon issue tried is given, ten misprisions are not remedied by the statutes of 32 H. 8. 18 Eliz. or any other statute, but yet remain not amendable. 1. Material variance betwixt the original and the count, as it is resolved in *Bishop's*

(b) 2 Roll. Rep. 253, 254.

(c) 11 Co. 6. b. 5 Co. 36. b. 1 Anders. 26. 27. pl. 60. O. Benl. Kelw. 207. b. Benl. in Ash. pl. 5. Hob. 281. 21 Jac. c. 13.

† *Vide* stat. 4 & 5 Annæ, c. 61.

(H) By stat. Jac. 1. c. 13. judgment after verdict shall not be stayed or reversed by reason of any variance in form only between the original writ or bill, and the declaration, plaint, or demand, &c. or by reason that the *venire facias*, *habeas corpora*, or *distringas* is awarded to a wrong officer upon any insufficient suggestion, or by reason the visne is in some part misawarded or sued out of more places, or fewer places, than it ought to be, so as some one place be right named, &c. &c. or for that the sheriff's name or other officer's name is not set to the return of any such writ, so as upon examination it be proved that the said writ was returned by the sheriff, or under sheriff, or any such officer; and by 16 and 17 Car. 2. c. 8. judgment after verdict shall not be staid or reversed for want of form or pledges returned upon the original writ, or because the sheriff's name is not returned thereon, or for want of pledges upon any rule or declaration, &c. &c. nor for want of averment of *hoc paratus est verificare*; or of *hoc paratus est verificare per recordum*, &c.; or for that there was no right venue, so as the cause were tried by a jury of the proper county or place where the action is laid; nor any judgment after verdict, confession by *cognovit actionem* or *relicta verificatione* shall be reversed for want of *misericordia* or *capiatur*, or by reason that a *capiatur* is entered for a *misericordia*, or *e converso* &c. By 5 Geo. 1 c. 13. judgment after verdict shall not be stayed or reversed for any defect or default in them in form or substance, in any bill, writ original or judicial, or for any variance in such writs from the declaration or other proceedings.

By stat. 4 Anne, c. 16. § 2., the Statutes of Jeofails are extended to judgments upon confession, *nil dicit*, or *non sum informatus* in any Court of Record, so as there be an original writ or bill and warrants of attorney, duly filed according to law. And by stat. 9 Anne, c. 20. § 7, this and all the Statutes of Jeofails are extended to writs of *mandamus*, and informations in nature of a *quo warranto*.

By stat. 6 Geo. 4. cap. 50. § 13. Every writ of *venire facias* for the trial of any issue, civil or criminal, shall direct the sheriff to return the jury of the body of his county.